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IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 23-CA-008801

STEFEN WYNN,

Plaintiff,

vs.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

MOTION TO STRIKE SECOND AMENDED COMPLAINT ALLEGATIONS BY CITY OF NEPTUNE BEACH

Defendant, CITY OF NEPTUNE BEACH ("the City"), subject to its Motion to Dismiss the Second Amended Complaint (the Complaint), filed contemporaneously with this Motion, pursuant to Fla. R. Civ. P. 1.140 (f) moves the Court to enter an order striking the following enumerated paragraphs and allegations from the most recent Complaint because these immaterial, impertinent and scandalous allegations have no bearing on the claim asserted by Plaintiff.

This motion is based on the following grounds:

BACKGROUND

1. The Second Amended Complaint is filed by the City of Neptune Beach's former City Manager, Stefan Wynn, who claims that the City discriminated against him when it fired him on January 17, 2023, based on his protected whistleblower activity pursuant to Fla. Stat. 112.3187. *Second Amended Complaint* ¶ 1, 6.

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2. Despite the narrow one-count, statutory claim of wrongful termination asserted pursuant to Fla. Stat. § 112.3187, by a three-year city manager, Plaintiff's 13-page Complaint unnecessarily expands many factual allegations into areas that have no relevance or relationship to a Public Whistleblower claim. These allegations are due to be stricken because they are "immaterial, impertinent or scandalous" and cause confusion as to irrelevant facts with those relevant to the whistleblower claim. Fla. R. Civ. P. 1.140(f).

3. To the extent that the Complaint unnecessarily alleges activities relating to an individual city commissioner, these allegations should be stricken because, like all city commissions, the Neptune Beach City Commission acts as a body and no one commissioner has any independent authority.

Law and Motion

A motion to strike is the appropriate procedural vehicle to challenge allegations in Plaintiffs' Complaint that are immaterial, impertinent, or scandalous. Fla. R. Civ. P. 1.140(f) and (h). For this reason, the City asserts that the following should be stricken from the most recent Complaint and that the Plaintiff should be directed to again re-plead the Complaint without the objectionable allegations:

1. Paragraph 7 alleges "Plaintiff was subjected to a hostile work environment, disparate treatment, different terms and conditions of employment, and held to a different standard because of his Whistleblower status, and because he reported Defendant's unlawful employment activities and was subject to retaliation thereafter." The phrase "was subjected to a hostile work environment, disparate treatment, different terms and conditions of employment, and held to a different standard" should be stricken. Section 112.3187 prohibits employers "from taking retaliatory action against an employee" for whistleblowing. §112.3187(2). The statute

differs from Fla. Stat. §760.10 et. seq. which protects employees from discrimination. Plaintiff's allegations that he was subject to a "hostile work environment, disparate treatment, different terms and conditions of employment, and held to a different standard…" are immaterial, impertinent and scandalous because they have no bearing on the §112.3187 statutory claim asserted by Plaintiff and they serve to confuse the issue. Importantly, the city has one city manager who reports to one body, the City Council. The City Manager is a contract employee who, by law, has different terms and conditions of employment per his contract and duties. The City manager, per contract and city ordinances, is held to "different terms and conditions of employment." This is not a violation of the statute alleged. The City Manager manages all city employees. It is his duty to prevent hostile work environments.

2. Paragraph 8 alleges: "The disparate treatment and retaliation came at the hands of specifically but not limited to Defendant's City Councilor Lauren Key and Defendant's City Council." Because the city council acts as a body and no councilmember has any independent authority, the words "City Councilor Lauren Key and" should be stricken from paragraph 8.

3. Paragraph 9 and Exhibit A should be stricken because as a matter of law, they cannot form the basis for a public whistleblower claim by Plaintiff per Fla. Stat. § 112.3187.

4. Paragraph 10 and Exhibit B should be stricken because as a matter of law, they cannot form the basis for a public whistleblower claim by Plaintiff per Fla. Stat. § 112.3187. In Exhibit B, Plaintiff responds to the City's auditors in a document entitled, "Inquiries for Fraud and other Errors" in the Annual Financial Audit. In this document Plaintiff, in his role as City Manager, merely responds to questions submitted annually by the City auditors who are retained to conduct the annual audit of the City. Exhibit B reflects that Plaintiff is unaware of fraud or is taking action pursuant to his managerial duties as city manager to improve financial processes.

Section 112.3187(6) (TO WHOM INFORMATION DISCLOSED) requires information under the law to be disclosed to "a chief executive officer as defined in s. 447.203(9) or other appropriate local official." Plaintiff was the chief executive officer for the City who reported to the City council. (*See,* Section 2-81 of the Code of Ordinances for the City, designating the City Manager as the chief executive officer). The City Auditors were not appropriate local officials for reporting information under 112.3187.

5. Paragraph 11 should be stricken because as a matter of law, the allegations in this paragraph cannot form the basis for a public whistleblower claim per Fla. Stat. § 112.3187. In paragraph 11, Plaintiff alleges that he contacted one councilmember had a verbal discussion about his disclosures to the City's Auditors and "discloses suspected fraud discussed in paragraph 10" of the Complaint. For the reason cited in paragraph 4, above, these allegations are immaterial to a claim under 112.3187.

6. In paragraph 12, Plaintiff alleges: The Defendant's Auditors, Purvis Gray, the Defendant's City Council, Lauren Key and the Defendant's CFO were all either chief executive officers or other appropriate local officers, all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff. Per the City Ordinances, Article III, Division 2, Sec. 2-81, Plaintiff was the chief executive officer.[1] ("The city manager shall be the chief executive officer of the city government, shall enforce the laws of the city and require the faithful performances of all administrative duties.") Per the City Charter, Section 2.05, "All powers of the city shall be vested in the city council."[2] Plaintiff's claims that the City's Auditors, one councilmember (Key) and the "Defendant's CFO" were "were in

[1] This section of the Code of ordinances is contained on municode at: https://library.municode.com/fl/neptune_beach/codes/code_of_ordinances?nodeId=PTIICOOR_CH2AD_ARTIIIOFEM_DIV1GE

[2] Neptune Beach's City Charter may be found on municode at: https://library.municode.com/fl/neptune_beach/codes/code_of_ordinances?nodeId=PTICH

positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff" should be stricken because, as a matter of law, Plaintiff was the chief executive officer and the City Council was the proper authority to receive reports from Plaintiff.

7. Paragraph 13 should be stricken because as a matter of law, the allegations in this paragraph cannot form the basis for a public whistleblower claim per Fla. Stat. § 112.3187. In paragraph 13, Plaintiff alleges that he was questioned by city council members publicly about "certain practices with in the [] City." Plaintiff then attaches Exhibit C which is an email string relating to policies and charges for public records. The allegations in this paragraph and Exhibit C are immaterial to a §112.3187 claim and thus, should be stricken.

8. Paragraph 14 should be stricken because as a matter of law, the allegations in this paragraph cannot form the basis for a public whistleblower claim per Fla. Stat. § 112.3187. In paragraph 14, Plaintiff alleges that he reported overspending by the City's police department to the Chief of Police, the Chief Financial Officer and the City Clerk and that each of these subordinates were "either chief executive officers or other appropriate local officers" who were in a position to "investigate, police, manage or otherwise remedy the violations or acts reported by Plaintiff." By law, Plaintiff managed two of these individuals (the Chief of Police and the Chief Financial Officer) and the police department. The City Clerk was not responsible for overspending in the police department, and she reports to the same supervisor that plaintiff reported to, the city council. *See,* Sec 2-167. Other than the City Clerk, the city manager supervises all city employees. Per Sec. 2-84(a),

> The city manager shall appoint competent, qualified officers and employees to the administrative service and shall have the power to dismiss, suspend and discipline, in accordance with the civil service, all officers and employees in the administrative service under the city manager's control. The city manager shall also have the power to authorize a department head or officer to appoint and remove subordinates serving under that department head or officer.

Per Sec. 2-96: "The City manager, or any other qualified person as provided by ordinance, shall be the director of public safety, under whose supervision there shall be a police department." Per Sec. 2-111, the director of public safety "shall be the head of the police department and shall be appointed by the city manager, subject to the approval of the city council." The Finance Director is likewise appointed by the city manager and approved by the city council. Sec. 2-170, City Code. The City Clerk is appointed by and supervised by the city council. Sec. 2-167, City Code. Paragraph 14, also cites to Exhibit F, however, this document should be stricken because it is immaterial and cannot form the basis for a whistleblower complaint.

9. Paragraph 15 should be stricken because as a matter of law, the allegations in this paragraph cannot form the basis for a public whistleblower claim per Fla. Stat. § 112.3187. In paragraph 15, Plaintiff alleges a "clear violation of the City's procurement policies" in the City's police department. Plaintiff, in his role as the city's "chief executive officer" or city manager was responsible for managing the police department. Plaintiff's allegations relating to the marriage between a councilwoman and a commander in the City's police department likewise do not constitute facts to support a claim under §112.3187; therefore, they should be stricken. Plaintiff does not allege that he reported this alleged "conflict of interest" to the proper authority under §112.3187.

10. Plaintiff's allegations in paragraphs 16 should be stricken for the reasons cited in paragraph 8, above. Further, allegations relating to the City budget fall within the city manager's duties. Under the City Charter, the city council adopts the city budget by ordinance. Section 4.04, City Charter. The City manager is responsible for preparing the budget with the assistance of the Finance Director. Sec. 2-175 (Preparation of budget). For these reasons, Plaintiff's allegations relating to the city budget in this paragraph are immaterial and should be stricken.

11. Plaintiff's allegations in paragraphs 17 should be stricken for the reasons cited in paragraphs 8 and 10, above.

12. In paragraph 18, plaintiff alleges that he reported to the Chief of Police that a police commander and a councilwoman were "committing a crime by abusing and overspending the city's police budget." For the reasons cited above, this allegation should be stricken because as a matter of law, the allegations paragraph 18 cannot form the basis for a public whistleblower claim per Fla. Stat. § 112.3187. Plaintiff was responsible for addressing budget concerns.

13. Plaintiff's allegations in paragraphs 19, 20, 21, and 22 should be stricken for the reasons cited in paragraphs 8 and 10, above.

14. Paragraph 23 A should be stricken because as a matter of law, its allegations are immaterial and cannot form the basis for a public whistleblower claim by Plaintiff per Fla. Stat. § 112.3187.

15. The allegations of paragraphs 24-35 should be stricken because as a matter of law, they are immaterial and do not form the basis for a public whistleblower claim by Plaintiff per Fla. Stat. § 112.3187.

16. The allegations of paragraphs 36-37 and Exhibit D should be stricken because as a matter of law, they are immaterial and do not form the basis for a public whistleblower claim by Plaintiff per Fla. Stat. § 112.3187. Exhibit D is a report made by the city manager to his supervisors, the city council, which was part of plaintiff's duties.

17. In paragraph 39, Plaintiff alleges that he was terminated by the City Council "at the urging of Councilor Key." The phrase "at the urging of Councilor Key" should be stricken because it is "immaterial, impertinent and scandalous" as to Plaintiff's §112.3187 claim.

Moreover, the allegation is inaccurate. Minutes of the January 17, 2023 City council meeting[3] document that the motion to terminate Mr. Wynn was made by Councilwoman Livingston, seconded by Councilman Messinger, and resulted in a unanimous vote of all five councilmembers in favor of terminating Mr. Wynn's employment "with cause." A court is permitted to take judicial notice of matters of public record, such as city council minutes, election results, meeting videos and documents incorporated into the complaint by reference. See, § 90.202(11), Fla. Stat., (Authorizing judicial notice of facts that are not subject to dispute because they are generally known within the territorial jurisdiction of the court.); § 90.202(12), Fla. Stat., (Authorizing judicial notice of facts that are not subject to dispute because they are capable of accurate and ready determination by resort to sources whose accuracy cannot be questioned.)

18. In paragraph 44, Plaintiff alleges that after he was terminated, "upon information and belief," the City is "giving Plaintiff bad employment references hindering Plaintiff's ability to secure alternative employment." This paragraph should be stricken because it has no bearing on the allegations in the retaliation count. The City cannot legally be held liable under Chapter 112.3187 for actions that take place after an employee is no longer employed. Because Paragraph 44 is "…immaterial, impertinent, or scandalous" it meets the standard of being stricken contained in Rule 1.140(f), Fla. R. Civ. P.

19. In paragraph 46, Plaintiff alleges, "The Defendant's Auditors, Purvis Gray, the Defendant's City Council, Lauren Key, the City Clerk, the City Attorney and the Defendant's CFW were all either chief executive officers or other appropriate local officers" who could remedy violations of acts reported by Plaintiff. For the reasons stated in paragraphs 8 and 10

[3] The City's minutes are available on the world wide web at https://www.nbfl.gov/node/30/minutes/2023

above, outlining that the City ordinances clearly designate the city manager as the chief executive officer, this paragraph should be stricken.

20. The allegation contained in paragraph (e) of Plaintiff's "Prayer for Relief" on page 12 of the Complaint should be stricken because there is no right to a future injunction based on Plaintiff's allegations.

CONCLUSION

For the above reasons, the City respectfully requests an order striking irrelevant and scandalous allegations as asserted above.

CERTIFICATE OF SERVICE

I CERTIFY that on this 17th day of April, 2024, I electronically filed the foregoing with the Florida Court's E-Filing Portal, which will serve it on the following counsel of record by Electronic mail:

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